

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 28, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	18CV338507	Midland Funding LLC vs Priscilla Hernandez	Claim of Examination Parties to appear.
<u>LINE 2</u>	24CV441593	Fuheng, Inc. et al vs Zihan Liu	Order of Examination OFF CALENDAR. Moving party withdrew the examination.

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9:00 A.M.

Calendar Line # 1

Case Name Arthur Mungaray vs Greenpoint Mortgage Funding, Inc.

Case No. 20CV373378

Motion for Leave to File an Answer in Intervention

I. BACKGROUND

A. BRIEF FACTUAL AND PROCEDURAL HISTORY

This case stems from a November 19, 2020 Complaint filed by Plaintiff Arthur Mungaray (“Mungaray”) involving the real property located at 495 West Dunne Avenue, Morgan Hill, California 95037 (“Subject Property”). Plaintiff Mungaray seeks quiet title to the Subject Property and asserts that the mortgage was paid in full. (“Complaint”). In the Complaint, Plaintiff named Defendant Greenpoint Mortgage Funding, Inc. (“Greenpoint”), the original lender of the secured loan, but did not name Wells Fargo, N.A. (“Complaint”). Wells Fargo asserts that it is the beneficiary of a Deed of Trust (Santa Clara County Recorder’s Office, Instrument No. 18561062) on the Subject Property that was recorded on September 6, 2005. (Wells Fargo Motion, p. 2; Request for Judicial Notice, Vol. 1, No. 1; Exhibit 1). The Deed of Trust reflects that Plaintiff Mungaray obtained a \$500,000.00 loan from the original lender, Defendant Greenpoint that was secured on the property. (*Id.*, at p. 5). On February 16, 2012, a corporate assignment of the Deed of Trust was recorded (Instrument No. 21540371) reflecting assignment of the Deed of Trust by beneficiary MERS to Wells Fargo Bank. (*Id.*, at p. 6; Request for Judicial Notice, Vol. 1, No. 2; Exhibit 2). Wells Fargo avers that the subject property is not free and clear. (*Id.*).

On August 8, 2024, the Honorable Evette Pennypacker entered an Entry of Default and Final Judgment against Defendant Greenpoint and ordered that the Deed of Trust, a Notice of Default and a Notice of Trustee’s Sale were void. Greenpoint filed a Motion to Vacate and Set Aside Void Judgment Pursuant to Code Civ. Proc. § 473(d), which the Honorable Dan Nishigaya signed on behalf of the Honorable Shella Deen and granted on November 24, 2025. The Order provides, “IT IS FURTHER ORDERED that this Court’s Entry of Default and Final Judgment entered on August 8, 2024, is VACATED and set aside as void ab initio and this case is REINSTATED.” (Minute Order, November 24, 2025).

On December 11, 2025, Plaintiff Mungaray filed a Notice of Appeal (No. H053929) that is pending.

B. MOTION FOR LEAVE TO FILE AN ANSWER IN INTERVENTION

Wells Fargo, N.A. Successor by merger to Wells Fargo Bank Minnesota, N.A. f/k/a Northwest Bank Minnesota, N.A. as trustee for structure asset mortgage investments II, Inc. Greenpoint Mortgage Funding Trust 2005-AR5, Mortgage Pass through Certificates Series 2005-AR5 (hereinafter “Wells Fargo”) filed this motion for leave to file an Answer in Intervention on March 27, 2026. Wells Fargo asserts that its interest as beneficiary of the Deed of Trust secured by the Subject Property is not adequately represented in this case. (Wells Fargo’s motion, p. 3). Wells Fargo seeks to protect its interest in the Subject Property through intervention and submits intervention under California Code of Civil Procedure section 387. (*Id.*). Wells Fargo asserts that its application to intervene is timely and submits a Proposed Answer in Intervention as Exhibit A to its moving papers. Based on its interest, specifically due to its recorded beneficiary status in the Deed of Trust on the Subject Property, Wells Fargo seeks mandatory intervention under section 387(b). (*Id.*, at p. 9-10). In the alternative, Wells Fargo submits permissive intervention would be appropriate given its interest in this litigation, successor of either of the parties, or an interest against both under section 387(a). (*Id.*, at p. 9-10).

The Court has carefully reviewed Wells Fargo’s moving papers including, notice of motion and memorandum of points and authorities (totaling 43 pages), Requests for judicial notice volumes 1 and 2 (totaling 245 pages and 464